

**Tenure:** 10

\*Board Discipline Recommendations were not issued for complaints closed prior to the CCRB's adoption of the NYPD's Disciplinary Matrix on 03/15/2021. With the adoption of the NYPD Disciplinary Matrix, CCRB now issues a Board Discipline Recommendation for officers that is separate and apart from the disposition of the allegations substantiated against the officer.

\*\*Complaints closed after December 2021 use the terminology "Other Possible Misconduct Noted" (OPMN). Complaints closed prior to December 2021 use the terminology "Other Misconduct Noted" (OMN).

## Officer History

**Officer Name:** Guy, Akil

**Tax ID:** 954274

**Sex:** M

**Shield:** 03541

**Race:** Black

**Rank:** SGT

**Command:** 079

**Birth Year:** [REDACTED]

**Appt Date:** 01/09/2013

**Age:** [REDACTED]

**Tenure:** 10

| CCRB #     | CMD        | Incident Date | Reported Date | Allegation                               | Allegation Disposition | Board Discipline Recommendation* | NYPD Allegation Disposition | NYPD MOS Penalty |
|------------|------------|---------------|---------------|------------------------------------------|------------------------|----------------------------------|-----------------------------|------------------|
| [REDACTED] | [REDACTED] | [REDACTED]    | [REDACTED]    | [REDACTED]                               | [REDACTED]             |                                  |                             |                  |
| 202106893  | 079        | 11/11/2021    | 11/12/2021    | Abuse - Question<br>Abuse - Vehicle stop |                        |                                  |                             |                  |
| 202202509  | 079        | 04/16/2022    | 04/19/2022    | Force - Physical force                   |                        |                                  |                             |                  |
| 202202953  | 079        | 05/04/2022    | 05/10/2022    | Force - Other                            |                        |                                  |                             |                  |
| 202203442  | 079        | 05/28/2022    | 05/30/2022    | OPMN - Improper use of body-worn camera  |                        |                                  |                             |                  |
|            |            |               |               | <b>Total Charges = 24</b>                |                        | <b>Total Cases = 11</b>          |                             |                  |

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## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                              |                                        |                                    |                                                                                                                                                                                                                       |
|------------------------------------------------------------------------------|----------------------------------------|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Genevieve Lamont                                            | Team:<br>Squad #8                      | CCRB Case #:<br>202002081          | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday 03/03/2020 4:30 PM<br>Tuesday 03/03/2020 4:30 PM | 18 Mo. SOL<br>09-03-2021<br>09-03-2021 | EO SOL<br>04-20-2022<br>04-20-2022 | Location of Incident:<br>79th Precinct stationhouse;<br>Woodhull Hospital<br>Precinct:<br>79                                                                                                                          |
| Date/Time CV Reported<br>Thu, 03/12/2020 2:51 PM                             | CV Reported At:<br>CCRB                | How CV Reported:<br>Phone          | Date/Time Received at CCRB<br>Thu, 03/12/2020 2:51 PM                                                                                                                                                                 |

| Complainant/Victim           | Type        | Home Address                               |
|------------------------------|-------------|--------------------------------------------|
| 1. S [REDACTED] N [REDACTED] | Comp/Victim | [REDACTED] Clifton Place Brooklyn NY 11238 |

| Witness(es)                  | Home Address |
|------------------------------|--------------|
| 1. W [REDACTED] A [REDACTED] |              |
| 2. R [REDACTED] S [REDACTED] |              |

| Subject Officer(s)                 | Shield     | TaxID      | Command    |
|------------------------------------|------------|------------|------------|
| 1. POM Os [REDACTED] Pa [REDACTED] | [REDACTED] | [REDACTED] | [REDACTED] |
| 2. SGT Akil Guy                    | 03541      | 954274     | 079 PCT    |

| Witness Officer(s)                | Shield No | Tax No | Cmd Name |
|-----------------------------------|-----------|--------|----------|
| 1. POM Ph [REDACTED] T [REDACTED] | 11569     | 957233 | 079 PCT  |

| Officer(s)                          | Allegation                                                                                              | Investigator Recommendation   |
|-------------------------------------|---------------------------------------------------------------------------------------------------------|-------------------------------|
| A . SGT Akil Guy                    | Abuse of Authority: Sergeant Akil Guy forcibly removed S [REDACTED] N [REDACTED] to the hospital.       | A . Exonerated                |
| B . POM Os [REDACTED] Pa [REDACTED] | Force: Police Officer Os [REDACTED] Pa [REDACTED] used physical force against S [REDACTED] N [REDACTED] | B . Exonerated                |
| C . SGT Akil Guy                    | Other Possible Misconduct Noted: Sergeant Akil Guy failed to prepare an AIDED report.                   | C . Other Possible Misconduct |

### Case Summary

On March 12, 2020, S [REDACTED] N [REDACTED] filed this complaint with the CCRB by phone.

On March 3, 2020, at approximately 4:30 p.m., Ms. N [REDACTED] was protesting in front of the 79<sup>th</sup> Precinct stationhouse in Brooklyn when Sgt. Akil Guy of the 79<sup>th</sup> Precinct informed her that she was being taken to the hospital for evaluation (**Allegation A: Abuse of Authority; Exonerated**). PO Os [REDACTED] Pa [REDACTED] of the 79<sup>th</sup> Precinct then grabbed Ms. N [REDACTED] by her arm and pulled her towards the ambulance (**Allegation B: Force; Exonerated**). Ms. N [REDACTED] was then transported to Woodhull Hospital in Brooklyn.

The investigation determined that Sgt. Guy failed to prepare an AIDED report for this incident (**Allegation C: Other Possible Misconduct Noted**).

The investigation received body-worn (BWC) footage from Sgt. Guy, PO Pa [REDACTED] PO E [REDACTED] R [REDACTED] PO Ph [REDACTED] T [REDACTED] PO J [REDACTED] C [REDACTED] and PO E [REDACTED] C [REDACTED] [BR01 through BR06, respectively].

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Sergeant Akil Guy forcibly removed S [REDACTED] N [REDACTED] to the hospital.**

**Allegation (B) Force: Police Officer Os [REDACTED] Pa [REDACTED] used physical force against S [REDACTED] N [REDACTED]**

Ms. N [REDACTED] testified that she went to the 79<sup>th</sup> Precinct at around 10:40 a.m., with the intention of filing a complaint regarding ongoing sexual harassment she was experiencing from her neighbor, known to the investigation as “J [REDACTED]”. Upon arriving, Ms. N [REDACTED] was informed that no detectives were available; she then waited at the stationhouse until approximately 4:00 p.m., when an officer instructed Ms. N [REDACTED] to leave. Ms. N [REDACTED] then spoke with Sgt. Guy, who refused to take her complaint against J [REDACTED] and told her that she could “march against them if she wanted to” but could not remain in the stationhouse. Ms. N [REDACTED] then left the stationhouse but remained outside its front doors. She began chanting outside the front doors, using a portable Bluetooth microphone app on her cellphone. She did not remember precisely what she said but stated that it was about officers needing to address the issue of sexual assault. After 10 to 20 minutes, Sgt. Guy and two other officers, PO T [REDACTED] and PO Pa [REDACTED] approached her. Sgt. Guy handcuffed Ms. N [REDACTED] he did not issue any orders for her to leave the area prior to handcuffing her. As she was being handcuffed, Ms. N [REDACTED] told Sgt. Guy that if he wanted to kill her, he could shoot her, and that she was not afraid of being locked up. Sgt. Guy responded that she was not being arrested, but that she had to go to the hospital for evaluation. Sgt. Guy repeatedly told the officers that Ms. N [REDACTED] was an EDP, which she knew to mean emotionally disturbed person. She did not remember anything else Sgt. Guy said. Ms. N [REDACTED] did not resist being handcuffed. Ms. N [REDACTED] was handcuffed for 15 to 20 minutes before the ambulance arrived on scene. When the ambulance arrived on scene, PO Pa [REDACTED] grabbed Ms. N [REDACTED] said, “I’ve been waiting to do this”, and dragged her to the ambulance. She was taken to the ambulance, where she spoke with two EMTs; she did not recall what conversation she had with them but stated that they were very rude to her. Ms. N [REDACTED] was ultimately taken to Woodhull Hospital in Brooklyn [BR07].

Sgt. Guy was working the front desk at the 79<sup>th</sup> Precinct stationhouse in Brooklyn, when Ms. N [REDACTED] walked into the stationhouse, screaming. Sgt. Guy was not aware of Ms. N [REDACTED] arriving at the stationhouse in the morning or any interaction she had with officers while there. Sgt. Guy stated that he intervened once he heard Ms. N [REDACTED] screaming. She was in the stationhouse waiting area and began screaming that a camera was pointed towards her building and that she was being sexually assaulted from this. Sgt. Guy found this behavior to be erratic and believed that Ms. N [REDACTED] was not capable of self-care and might be a harm to other people. Sgt. Guy asked her to calm down at least once, but she continued to scream. He did not recall if any other officer told her to calm down. He believed that Ms. N [REDACTED] stayed in the waiting room for the duration of the incident and did not recall if she went outside at any point. Sgt. Guy stated that, based on her

behavior, he believed that EMS needed to be called to evaluate her. Sgt. Guy informed Ms. N [REDACTED] of this, who said that she did not need to go to the hospital. As Ms. N [REDACTED] refused, she was placed in handcuffs; Sgt. Guy stated that this was for her own safety, as well as the safety of others. He did not know who handcuffed her. He stated that he vaguely remembered her chanting outside the stationhouse but did not remember when this was or what she said. Ms. N [REDACTED] was then walked to the ambulance, although Sgt. Guy did not go with these officers and did not know who accompanied her. He did not observe an officer tell Ms. N [REDACTED] "I've been waiting for this" when EMS arrived and pulling her to the ambulance. He did not see EMS speak with Ms. N [REDACTED] he did not have any conversation with EMS or have any information relayed regarding their evaluation but was aware that they removed her off scene. Sgt. Guy did not have any further interaction with Ms. N [REDACTED] after she was removed. He believed that one officer accompanied her to the hospital, as she was handcuffed, although he did not know which officer [BR08].

PO Pa [REDACTED] testified that, while stationed outside the stationhouse, a transmission went over the radio that an ambulance was needed for an emotionally disturbed person, Ms. N [REDACTED] who was inside the vestibule of the stationhouse. PO Pa [REDACTED] was able to see inside the vestibule, where Ms. N [REDACTED] was surrounded by a couple of officers. He could hear her yelling at the officers but did not recall what she was saying. Once the ambulance arrived at the stationhouse, an EMT requested that PO Pa [REDACTED] remove Ms. N [REDACTED] from the vestibule and bring her to the ambulance. PO Pa [REDACTED] held onto Ms. N [REDACTED] upper arm with one hand and walked her to the ambulance, which was about twenty feet away. She was upset and asked PO Pa [REDACTED] for his information, which he provided. He stated that Ms. N [REDACTED] was passively compliant, stopping and starting multiple times, initially refusing to go into the ambulance, and refusing to sit down inside. He did not use any force with Ms. N [REDACTED] aside from holding onto her arm to keep her from deviating away from the ambulance. He did not recall Ms. N [REDACTED] attempting to get out of his grip or do anything else with her body. Ms. N [REDACTED] was still speaking loudly; PO Pa [REDACTED] did not observe any officers interact with her on the way to the ambulance. Ms. N [REDACTED] did not complain of any pain while being escorted. PO Pa [REDACTED] stated that he did not pull Ms. N [REDACTED] to the ambulance at any point [BR09].

PO R [REDACTED] BWC shows Ms. N [REDACTED] handcuffed at 1:04 minutes. At 1:32 minutes, Sgt. Guy tells Ms. N [REDACTED] "Let's go to the hospital...let's get you checked out." At 3:00 minutes, PO R [REDACTED] holds onto Ms. N [REDACTED]. From 3:00 minutes to 6:45 minutes, Ms. N [REDACTED] yells at Sgt. Guy and the other officers that they do not take issues of sexual assault and harassment seriously. At 6:46 minutes, PO R [REDACTED] unhandcuffs Ms. N [REDACTED] and removes her backpack. She is re-handcuffed at 7:15 minutes. At 16:25 minutes, an officer grabs Ms. N [REDACTED] by the elbow and pulls her out of the stationhouse vestibule towards the ambulance outside. At 16:44 minutes, Ms. N [REDACTED] asks for the officer's name who is pulling her, stating "he is pulling too hard." The officer responds that his name is Pa [REDACTED]. At 17:14 minutes, Ms. N [REDACTED] walks into the ambulance [BR03].

PO T [REDACTED] BWC captured Ms. N [REDACTED] interaction with the two EMTs while inside the ambulance. At 17:20 minutes, Ms. N [REDACTED] tells the EMT that she is not answering any questions and to "take her to the hospital." At 17:30 minutes, an officer can be heard telling the EMTs that Ms. N [REDACTED] was "yelling, screaming, acting erratic...I think she needs a psychological evaluation." Ms. N [REDACTED] then begins screaming that Sgt. Guy "set her up" and that he is "nasty, stinking garbage". At 18:09 minutes, the EMT tries to ask Ms. N [REDACTED] if she has a medical history, to which Ms. N [REDACTED] replies, "Take me to the hospital...I'm not answering nothing, take me to the hospital." At 19:50 minutes, the EMT again tries to ask Ms. N [REDACTED] questions, telling her that she is "trying to help her", to which Ms. N [REDACTED] replies, "I don't want to talk to you." Ms. N [REDACTED] continually yells obscenities and insults towards Sgt. Guy and the other officers while inside the ambulance. At 23:30 minutes, the EMT informs Ms. N [REDACTED] that they are taking her to Woodhull Hospital, as she is refusing to answer their questions [BR04].

According to Patrol Guide Procedure 221-13, when a uniformed member of service reasonably believes that a person is emotionally disturbed, the individual must be taken into protective custody. The Patrol Guide defines an emotionally disturbed person as a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others [BR10].

As per Patrol Guide Procedure 216-01, all members of service shall cooperate with ambulance and/or hospital personnel in every reasonable manner [BR11].

According to Patrol Guide Procedure 221-01, a member of service may use force when it is reasonable to place a person in custody or to prevent escape from custody. In determining if use of force is reasonable, MOS should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, MOS, and/or bystanders, if the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject's violent history (if known), the presence of hostile crowd or agitators, or if the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence [BR12].

While the investigation did not interview the EMTs for this incident, PO T [REDACTED] BWC shows the EMTs speaking with Ms. N [REDACTED] who repeatedly refuses to answer their questions and tells them to take her to the hospital, leading them to remove her for evaluation. As per the above cited procedure, the officers acted in accordance with the EMTs decision to remove Ms. N [REDACTED] to the hospital. It is therefore recommended that **Allegation A** be closed as **Exonerated**.

While PO Pa [REDACTED] maintained that he did not pull Ms. N [REDACTED] to the ambulance, the above cited procedure would have given him grounds to do so, as it was determined that Ms. N [REDACTED] needed to be placed in EMT custody for evaluation. Given these circumstances, it is therefore recommended that **Allegation B** be closed as **Exonerated**.

#### **Allegation (C) Other Misconduct Noted: Sergeant Akil Guy failed to prepare an AIDED report.**

The investigation received negative results for an AIDED report prepared for Ms. N [REDACTED] as a result of this incident [BR13]. Sgt. Guy testified that he did not know if a report was prepared but acknowledged that he did not prepare one. He stated that he would not be responsible for preparing one, and that responsibility would fall to one of the officers who accompanied Ms. N [REDACTED] to the hospital [BR08].

As per Patrol Guide procedure 216-01, an AIDED report must be prepared for when an individual is removed to the hospital by a member of service [BR11].

Despite maintaining he would not be responsible, Sgt. Guy was the highest ranking officer on scene involved in Ms. N [REDACTED] removal and would be responsible for ensuring that an AIDED report be prepared for the incident. As Sgt. Guy failed to do so, it is recommended that **Allegation C** result **Other Possible Misconduct Noted**.

#### **Civilian and Officer CCRB Histories**

- [REDACTED]
- Sgt. Guy has been a member of service for eight years and has been a subject in four previous CCRB complaints and 11 allegations, none of which were substantiated. Sgt. Guy's CCRB history does not reflect any apparent pattern pertinent to this investigation. Sgt. Guy is the subject in two open CCRB complaints:
  - Case # 202002169, in which a refusal to provide name allegation is pled, is currently under investigation.

- [REDACTED]  
[REDACTED]  
[REDACTED]
- [REDACTED]  
[REDACTED]
  - [REDACTED]  
[REDACTED]

- [REDACTED]
- On September 2, 2021, a FOIL request was submitted with the New York City Office of the Comptroller to determine a Notice of Claim was filed for this incident, the results of which will be added to the case file upon its receipt [BR15].
- [REDACTED]  
[REDACTED]

Reviewer: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_